

Epstein’s top advisers reportedly under federal investigation, marking major development for survivors

By MJ Lee, CNN

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Source: CNN

Federal investigators are reportedly probing two of Jeffrey Epstein’s closest advisers – his longtime lawyer Darren Indyke and his accountant Richard Kahn – marking a major development for the hundreds of survivors and victims who have pushed for accountability for those who may have aided the notorious sex offender.

The Wall Street Journal first [reported](#) this week that federal authorities have opened an investigation into Indyke and Kahn. CNN spoke with a source who was interviewed by investigators earlier this year about Epstein, including the two men. Investigators are speaking with potential witnesses who had dealings with Epstein, including survivors, the source said. Officials from a number of agencies including the US Attorney’s office for Southern District of New York (SDNY) are soliciting documentation connected to Epstein, such as emails and checks, they added.

According to the source, who spoke to CNN on the condition of anonymity for fear of retribution, investigators appeared interested in a wide range of topics that Indyke and Kahn would have had knowledge about, including Epstein’s numerous shell companies like the Florida Science Foundation. The non-profit was created in November 2007, and multiple [survivors have told CNN](#) that Epstein abused them there while he was also serving jail time.

A Justice Department spokesperson said in a statement to CNN: “We don’t comment on the existence, or lack thereof, of investigations. We have always said with regard to Epstein that if the evidence presents itself, we will investigate.” A spokesperson for SDNY declined to confirm the investigation or comment.

Daniel Wiener, a lawyer for Indyke and Kahn, told CNN that neither men has been subpoenaed, asked to speak with federal prosecutors or told that they are the subject of an investigation.

“They are aware that the US Attorney’s Office for the Southern District of New York recently asked to speak with at least one individual who provided services to Jeffrey Epstein, but the focus and the scope of the investigation are not known to them,” Weiner said.

Weiner pointed out that the same US Attorney’s office did not consider Indyke or Kahn to be among Epstein’s potential co-conspirators during its previous investigation in 2018 and 2019. He also reiterated that Indyke and Kahn were in no way complicit in Epstein’s criminal conduct.

Indyke and Kahn are among the most controversial and villainized men from Epstein’s inner circle, known to have had intimate knowledge of the ins and outs of Epstein’s business dealings over many years. In addition to being [co-executors of Epstein’s estate](#), they are also among the first beneficiaries in line to receive millions of dollars from Epstein’s trust should it ever pay out.

That arrangement has drawn scrutiny from victims as the estate defends itself against civil litigation from Epstein’s victims and pays for the defense of its co-executors in civil suits seeking damages for their alleged role in enabling Epstein.

Epstein died in prison in 2019 while waiting trial for federal sex trafficking charges. Only one person, his co-conspirator Ghislaine Maxwell, has been prosecuted in the US in relation to Epstein’s vast sex trafficking operation.

Survivors and advocates have long pushed for more investigations and prosecutions related to Epstein’s crimes, as well as transparency about the vast amount of information various agencies have collected about Epstein over the years. The passage of a new law last year forced the Justice Department to release millions of documents related to Epstein, but millions more remain in the DOJ’s possession and have yet to be made public.

Lauren Hersh, the co-founder of World Without Exploitation, which works closely with Epstein survivors, said in a statement that Epstein’s crimes were only “made possible by a network of people and institutions around him that enabled exploitation, protected powerful people and failed the women and girls who were harmed.”

“We welcome the news that federal prosecutors are investigating Darren Indyke and Richard Kahn and asking questions that should have been asked years ago,” Hersh said. “Survivors deserve a full accounting of how Epstein and those in his orbit were able to operate for so long, and accountability for everyone who enabled or participated in their exploitation.”

Class-action lawsuits

Indyke and Kahn have also both been the subject of litigation in recent months, including a [class-action suit filed in August](#) by Epstein survivors alleging they enabled Epstein’s crimes.

“Each played critical roles in enabling Epstein’s acts,” the victims alleged in the lawsuit filed in August, “by providing Epstein the necessary financial and legal support for his sex trafficking operation.”

Their overlapping roles as both beneficiaries of and coexecutors for Epstein’s estate has led to allegations in court recently that they have an inherent conflict of interest.

“They had all these contradictory roles. As an executor of an estate, you are a fiduciary, which is a very high standard for your conduct,” Jennifer Freeman, an attorney representing Epstein victims, told CNN in an interview last week. “And I don’t see how, as executors of the estate, they could also make the decision about whether they were responsible in any way. You’re making a decision about your own personal liability, so they decided they had no liability. Surprise, surprise.”

At a class-action settlement hearing last week in Manhattan, Freeman raised the issue in an objection. Though the judge dismissed her argument, the point underscores the unusual roles Indyke and Kahn hold, as among Epstein’s closest advisors in both life and his affairs after his death.

Publicly, both have said they do not expect to receive their bequests, given the estate’s depleted finances and expected litigation and settlements still to come.

Daniel Weiner and Daniel Ruzumna, attorneys for Indyke and Kahn respectively, recently told CNN that it will likely take at least three more years for the estate to complete the probate process and that neither of their clients have received any funds from the estate.

If Indyke and Kahn “were to receive any funds from the 1953 Trust, they would do so only after all claims against the Estate are finally resolved and the Estate is fully probated,” the two said in a joint statement.

Indyke testified to lawmakers earlier this year that he “had no knowledge whatsoever” of Epstein’s wrongdoing and rejected “any suggestion” he assisted or facilitated his former boss’ crimes. Kahn [told Congress](#) that his relationship with Epstein had been “strictly on a professional level.”

“I never observed any sexual abuse or trafficking of women and never received a complaint – either by one of Epstein’s victims or any one else – of such abuse or trafficking,” [Kahn said](#).

CNN’s Em Steck contributed to this story.

This story has been updated with a statement from an attorney for Indyke and Kahn.

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